

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: September 15, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	LOKES VS. LOUIS 2023-01367818	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Hertz Vehicles LLC's unopposed motion to compel plaintiff Samantha Lokes to appear for her deposition within thirty (30) days is DENIED. The proof of service shows Defendant served the Motion on Plaintiff who is appearing in <i>pro per</i> via email. There is no proof that Plaintiff consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Motion by electronic mail on Plaintiff was insufficient. Moving Defendant to give notice.
2.	KORT VS. BMW OF NORTH AMERICA, LLC 2025-01500459	MOTION SEEKING RELIEF Defendant BMW North America, LLC's Motion Seeking Relief Under C.C.P. Section 473(b) is MOOT. The motion, which was filed on 4/7/26, seeks to void an erroneous settlement executed on 2/13/26 reflected in the 2/16/26 Notice of Settlement filed by Plaintiff. However, on 5/13/26, Plaintiff filed an Amended Notice of Settlement. Therefore, it appears the parties have resolved the dispute by reaching an amended settlement.
3.	SECURITY NATIONAL INSURANCE COMPANY VS. JKS PARTNERS LLC 2025-01507333	MOTION FOR ASSIGNMENT ORDER RE: RIGHTS TO PAYMENT OF MONEY DUE OR TO BECOME DUE Plaintiff/Judgment Creditor Security National Insurance Company's ("Creditor") unopposed Motion for An Assignment Order is GRANTED. Creditor's request for judicial notice is GRANTED. Creditor moves for order an assigning to Creditor the interest, if any of Defendant/Judgment Debtor JKS Partners LLC and dba Contrast Media Agency ("Debtor") in its rights to payment of money due or to become due, whether styled accounts receivable, general intangibles, payment intangibles, accounts, deposit accounts, royalties, fees, commissions, and other rights to money, from its activities as a designer, manufacturer and manager of trade show booths, retail fixtures, and branded environments, operating from 4040 N Palm St, Unit 402, Fullerton CA, 92835, or elsewhere, to the extent necessary to satisfy the judgment entered in this action in full.

		The court may order a judgment debtor to assign to the judgment creditor all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to 1) wages; 2) rents; 3) commissions; 4) royalties; 5) payments due from a patent or copyright; and 6) insurance policy loan value, including accounts receivable. (Code Civ. Proc. § 708.510(a)(1)-(5) & Legislative Committee Comments to Code of Civ. Proc. § 708.510.) Creditor indicates the balance due on the judgment as of 9/15/26 is \$104,129.10, which consists of the principal judgment amount (\$97,576.14), post judgment interest as of 9/15/26 (\$6,492.96), and costs (\$60). (Aires Decl., ¶ 3, Ex. A.) Debtor has made no effort to satisfy the judgment. (Aires Decl., ¶ 8.) Creditor's evidence shows that Debtor operates as a marketing agency from 4040 N Palm St, Unit 402, Fullerton CA, 92835. (Aires Decl., ¶ 4.) Debtor operates as a designer, manufacturer and manager of trade show booths, retail fixtures and branded environments, and is providing services to several businesses. (Aires Decl., ¶¶ 5, 6.) As such, rights to payment of money due or to become due apparently exist in favor of Debtor. (Aires Decl., ¶ 7.) Debtor was served with a copy of the motion, and the court has received no objections to the motion. Debtor has therefore waived any claim of exemption. (See Code of Civ. Proc., § 708.550, subd. (a).) Pursuant to Code of Civil Procedure sections 708.510, the motion is GRANTED. Debtor is ORDERED to assign to Creditor all Debtor's interest, if any, to its rights to payment of money due or to become due, whether styled accounts receivable, general intangibles, payment intangibles, accounts, deposit accounts, royalties, fees, commissions, and other rights to money, from its activities as a designer, manufacturer and manager of trade show booths, retail fixtures, and branded environments, operating from 4040 N Palm St, Unit 402, Fullerton CA, 92835, or elsewhere, to the extent necessary to satisfy the judgment entered in this action, including accrued interest through the date of payment.
4.	RENTERIA VS. QUEZADA 2026-01549747	MOTION TO QUASH SERVICE OF SUMMONS Defendant Ramiro Quezada's Motion to Quash Service of Summons and Complaint is GRANTED. Defendant in pro per specially appears and moves under Code Civil Procedure section 418.10. Defendant challenges the court's personal jurisdiction over him on the ground of improper service.

		A defendant may serve and file a notice of motion “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.) Personal service requires the personal delivery of a copy of the summons and of the complaint to the person to be served. (Code Civ. Proc. § 415.10.) Here, the proof of service filed with the court indicates Defendant was personally served on 3/12/26 at 5:58 p.m. at 2277 Harbor Blvd #441, Costa Mesa, CA 92626. (ROA 13.) Defendant’s evidence establishes, however, that he relocated to Las Vegas, NV before the purported service date, he was physically in Las Vegas on the purported service date, he did not personally receive the papers at the Costa Mesa address listed in the proof of service, and the papers allegedly served were left at the front door of the Costa Mesa address where a new resident, David Parra, resided at the time. (Quezada Decl., pp. 1-2, Exs. A-E.) Plaintiff has not filed an opposition. Merely filing an exhibit list and exhibits, as Plaintiff has done here (ROA 39), is insufficient. (See Cal. Rules of Court, rule 3.1112(a)(3) [motion must include memorandum in support]; see also Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial, ¶ 9:103, p. 9(I)-C [“The same requirements applicable to the moving papers apply to the declarations and points and authorities filed in opposition to the motion.”].) Therefore, Plaintiff has not met his burden of proving the facts requisite to an effective service. The motion is granted.
5.	GUEVARA VS. ALHALLAQ 2025-01492960	MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT Plaintiff Jens Kevin Guevara’s motion for leave to file a second amended complaint is GRANTED. <u>Legal Standard</u> “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . .” (Code Civ. Proc., § 473, subd. (a)(1).) “Motions for leave to amend are directed to the sound discretion of the judge . . .” (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428, citing Code Civ. Proc., § 473, subd. (a)(1).) “[T]he court’s discretion will usually be exercised liberally to permit

amendment of the pleadings The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Ibid.*, citations omitted.) “[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend must:

- (1) Include a serially numbered copy of the proposed amended pleading;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier.

Plaintiff seeks an order granting leave to file a second amended complaint to substitute two identified Doe defendants.

In support of the motion Plaintiff’s counsel submits a declaration stating that on 3/11/26, approximately one month after filing the first amended complaint, defendant Alhallaq provided Plaintiff with a picture of a temporary insurance card for Hadley Tow and a link to a news article which identified the owners of Hadley Tow and California Heights Tow, Inc. as Mark Fawzi Hassan and Ahmed Fawszi Hassan. (Silverthorne Decl., ¶¶ 6-7.) Plaintiff seeks to add these parties as defendants.

Plaintiff contends Defendants will not be prejudiced as discovery remains open, no trial date has been set, and the proposed amendment does not introduce new theories or factual allegations. Plaintiff has complied with California Rules of Court, rule 3.1324, subdivisions (a) and (b).

Accordingly, the Court GRANTS Plaintiff’s unopposed motion for leave to file a second amended complaint.

Plaintiff is ORDERED to file the second amended complaint within five (5) days.

6.	LEOS VS. LEE 2023-01326455	MOTION TO CONTEST GOOD FAITH SETTLEMENT Defendant Joanna Cloonan’s Motion to Contest Good Faith Settlement is DENIED. <u>Cloonan’s Request for Judicial Notice</u> In support of her motion, Cloonan requests judicial notice of the following document: - Exhibit 1- April 2024 copy of a press release from the Orange County District Attorney’s Office stating Defendant Wynne Lee pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle. Lee objects to the request for judicial notice on the ground the Court may not take judicial notice of the truth of the statements contained in the press release. Evidence Code section 452, subdivision (c), provides for judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” A press release from the Orange County District Attorney’s Office may be considered an official act of the executive branch of the state. “While courts may notice official acts and public records, ‘[they] do not take judicial notice of the truth of all matters stated therein.’” (<i>Mangini v. R.J. Reynolds Tobacco Co.</i> (1994) 7 Cal.4th 1057, 1063 [citations omitted]; overruled on other grounds by <i>In re Tobacco Cases II</i> (2007) 41 Cal.5th 1257.) “[T]he taking of judicial notice of the official acts of a governmental entity does not in and of itself require acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom.” (<i>Id.</i> at pp. 1063-1064 [citation omitted].) Accordingly, the Court takes judicial notice of the existence of the press release but not of the truth of the matters contained therein. <u>Background</u> Plaintiff and Cloonan were parents and shared custody of Aiden Leos (deceased). (Compl. ¶¶ 8, 9.) Plaintiff alleges on 5/21/21, Aiden, six years old, was riding as a passenger in a vehicle driven by Cloonan. (Compl. ¶ 18.) As Cloonan was driving along the 55 freeway, she became involved in a “road rage” incident with Lee.
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(Compl. ¶ 20.) Cloonan passed Lee's vehicle and pointed her middle finger at Lee. (Compl. ¶ 21.) Eriz, who was riding with Lee, became enraged and fired a bullet from a gun into the rear of Cloonan's vehicle and struck and killed Aiden. (Compl. ¶ 23.)

Plaintiff and Lee entered into a settlement agreement for \$50,000.00.

Legal Standard

In an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt, a party to that action may seek from the court a determination that the settlement between the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors was made in good faith. (Code Civ. Proc., § 877.6.)

"If the good faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for the hearing by placing the burden of proving the lack of good faith on the contesting party. Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the non-settlor who asserts that the settlement was not made in good faith. . . . If contested, declarations by the non-settlor should be filed which in many cases could require the moving party to file responsive counterdeclarations to negate the lack of good faith asserted by the non-settling contesting party." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261-1262 [citations omitted].)

The standard for determining whether a settlement was made good faith is set forth in *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488. Under *Tech-Bilt*, the following factors are considered:

- (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability;
 - (2) the amount paid in settlement;
 - (3) the allocation of settlement proceeds among plaintiffs;
 - (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
 - (5) the financial conditions and insurance policy limits of settling defendants; and
 - (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants.
- (*Id.* at pp. 498-501.) The evaluation must be made based on the information available at the time of settlement. (*Id.* at p. 599.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would

establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (*Tech-Bilt, supra*, 38 Cal.3d at pp. 499-500.)

“The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be.” (*City of Grand Terrace, supra*, 192 Cal.App.3d at p. 1262.)

1. A Rough Approximation of Plaintiff’s Total Recovery and Settlor’s Proportionate Liability

Lee contends in her application “the amount of the parties’ settlement represents a significant proportion of the damages that Plaintiff could possibly recover from Settling Defendant at trial, if any.” (App. at 9:12-13.) Lee states the settlement is proportionate to her liability as the harm resulted from Eriz’s act and not any unsafe driving from Lee. (Opp. at 6:5-7.)

Cloonan contends Lee’s proportionate share of liability in Aiden’s death is substantially greater than represented.

As an initial matter, Plaintiff contends the range of possibilities for the “value” of Plaintiff’s claims is uncertain. (Opp. at 6:22-23.)

Plaintiff alleges he has suffered emotional pain and suffering from losing his son in an amount subject to proof at time of trial. (Compl. ¶ 50.) The only specific monetary sum Plaintiff alleges as damages is \$250,000, half of the \$500,000 he claims Aiden’s grandmother raised through a “Go Fund Me” account but has refused to give to Plaintiff. (Compl. ¶¶ 52-59.) Causes of action related to that allegation, however, are related only to Cloonan and her mother, Lacy. Thus, neither party sets forth a rough approximation of Plaintiff’s total claimed damages for consideration.

Substantial evidence (e.g., factual declarations) showing the nature and extent of the settling defendant’s liability is required to support a determination of “good faith.” (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1348.) “Substantial evidence, of course, is not synonymous with ‘any’ evidence, but is evidence which is of ponderable legal significance. It must be ‘reasonable in nature, credible, and of solid value; it must actually be ‘substantial’ proof of the essentials which the law requires in a particular case.” (*Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871 [citations omitted].)

Cloonan contends the potential damages on a wrongful death case of this nature are likely to be significant, given that the case involves the death of a healthy six-year-old child. Cloonan also contends Lee has admitted to unlawfully concealing the firearm Eriz used to shoot Aiden, fled the scene, and aided Eriz in evading arrest. Cloonan contends this illustrates Lee was connected to, and complicit in, the

criminal conduct surrounding Aiden’s death, and her role extended beyond mere negligent driving. (Mtn. at 4:8-12.)

In doing so, Cloonan relies on an April 2024 press release from the Orange County District Attorney’s Office stating Lee pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle.

As discussed above, the Court takes judicial notice of the existence of the press release but not of the truth of the matters contained therein. Accordingly, the press release does not provide substantial evidence regarding Lee’s proportionate liability sufficient to satisfy Cloonan’s burden. Even if the contents of the press release were true, however, they do not support a finding the settlement was grossly disproportionate to Lee’s relative liability.

Lee contends the charges she pled to “are related to conduct that occurred after-the-fact, rather than conduct that contributed to the actual death of the Decedent.” (Opp. at 4:14-15.) As an initial matter, the press release states Lee “pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle.” Thus, while a count of accessory after the fact may relate to conduct that occurred after the underlying incident, a count of having a concealed firearm in the vehicle directly relates to the incident.

Having a concealed firearm in a vehicle does not, however, establish ownership of the firearm. (See Penal Code, § 25400.) Cloonan does not contend the gun belonged to Lee, nor does Plaintiff’s complaint allege the gun belonged to Lee. Rather, Plaintiff alleges Doe Defendants “provided substantial support for Defendants, and each of them, including but, not limited to: selling, training, teaching, providing and/or encouraging the use of the 9mm Glock 17 Pistol (‘GLOCK’), in a given situation, for a good reason in the mind of MARCUS ANTHONY ERIZ, or for no reason.” (Compl. ¶ 11.) Plaintiff also repeatedly refers to “his” (Eriz’s) firearm throughout the complaint. Additionally, it is undisputed Eriz fired the gun.

Ultimately, Cloonan has not demonstrated the settlement was grossly disproportionate to Lee’s relative liability.

2. Amount Paid in Settlement and Allocation Among Plaintiffs

Lee contends \$50,000 is a substantial sum considering Lee contests liability and damages. Cloonan disputes the sum for the reasons discussed above. Allocation is not at issue as there is only one Plaintiff.

3. A Recognition Settlor Should Pay Less in Settlement than He would if He were Found Liable After a Trial

Lee contends the settlement demonstrates Plaintiff appreciated the certainty of receiving the settlement proceeds rather than risking a decision reached at trial, or even a lengthy, drawn-out litigation. Cloonan does not address this factor.

4. Settling Defendant's Financial Conditions and Insurance Policy Limits

Plaintiff and Lee settled for Lee's policy limits of \$50,000. (Zinn-McBride Decl. ISO App., ¶ 8.) Lee also contends she is insolvent and has no other assets to contribute towards a settlement or judgment. Cloonan contends policy limits alone do not establish good faith and Lee has not presented evidence regarding her insolvency.

Lee filed a Declaration of No Assets demonstrating she cannot pay a judgment in excess of her \$50,000 policy. While the declaration is executed outside California, it does not certify under penalty of perjury "under the laws of the State of California," that its contents are true. (See Code Civ. Proc., § 2015.5.)

As such, while Lee contends "there are no funds outside of insurance by which Settling Defendant can contribute personally to any settlement," (Opp. at 7:13-14), this is unsupported by any admissible evidence.

5. The Existence of Collusion, Fraud, or Tortious Conduct Aimed to Injure the Interests of the Non-Settling Defendants

Lee contends she knows of no instances of fraud, collusion, or other tortious conduct to injure Cloonan or any other non-settling defendants and Cloonan does not contend the existence of collusion, fraud, or tortious conduct.

In considering the factors above, the Court does not find Cloonan satisfied her burden of demonstrating the settlement is so far "out of the ballpark" as to be inconsistent with the equitable objectives of the statute.

For the first time on reply, Cloonan requests the Court order the settlement funds be held in trust pending final adjudication of liability and apportionment of the wrongful death recovery should the Court find the settlement to be in good faith as she and Plaintiff are statutory heirs.

"Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the

		respondent of an opportunity to counter the argument.” (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 [citation omitted].) As such, the Court declines to consider this argument as Lee was deprived of the opportunity to address this argument.
7.	IRVINE WESTPARK PLAZA LLC VS. BRINKER RESTAURANT CORPORATION 2025-01473357	MOTION FOR TERMINATING SANCTIONS Defendant Brinker Restaurant Corporation dba Chili’s Grill and Bar’s Motion for Terminating Sanctions, or in the Alternative, Issue Evidentiary Sanctions and Monetary Sanctions in the Amount of \$5,922.50 against Plaintiff Irvine Westlake Plaza LLC is GRANTED in part. Code of Civil Procedure section 2023.030 provides, “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the Court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose monetary, issue, evidentiary, or terminating sanctions on one engaging in the misuse of the discovery process. Code of Civil Procedure section 2023.010 states, in part, “Misuses of the discovery process include, but are not limited to, the following: (g) Disobeying a Court order to provide discovery.” Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12 [citation omitted].) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [citation omitted].) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal.App.4th 377, 390 [citation omitted].) Plaintiff’s initial discovery responses stated, “Responding Party agrees to produce the requested documents to the extent that they exist and are within its possession and/or control.” (ROA 30 (Mtn., Ex. C.)

The Court's 5/12/25 order granting Defendant's motion to compel ordered Plaintiff to "serve further responses clearly stating whether it will comply in whole or in part and the grounds for any inability to comply, using the language required under the Code of Civil Procedure provisions [Code Civ. Proc. § 2031.210, 2031.220, 2031.230, 2031.240]. (ROA 39 at p. 2.)

Defendant contends Plaintiff disobeyed the Court's order by failing to serve Code-compliance responses.

On 6/9/26, Plaintiff served its amended responses. (Goodfried Decl., Ex. 3.) Plaintiff's amended responses state, "Responding Party agrees to produce the requested documents." Thus, while Plaintiff previously responded to state that it would produce documents "to the extent that they exist and are within its possession and/or control," Plaintiff amended to state only that it would produce the requested documents.

These responses, however, still do not comply with the relevant Code sections. Code of Civil Procedure section 2031.220 provides:

A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

To the extent Plaintiff's responses are a statement that it will comply with the particular demand they must include the additional statements set forth above, including a statement whether compliance will be in whole or in part. Additionally, to the extent Plaintiff includes general objections on the grounds of the attorney client or work product privilege and confidential or trade secret information, section 2031.220 provides Plaintiff's response must indicate "that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

It remains unclear from Plaintiff's responses whether any documents are being withheld, for example, on the basis of any of the asserted objections.

As Plaintiff served its amended responses within the time ordered by the Court and appears to have attempted to comply as ordered by amending its responses (though still deficient), the Court does not find terminating or evidentiary sanctions are warranted at this stage. The Court admonishes Plaintiff's counsel, however, that a continued

		failure to comply with the applicable Codes, now set forth twice by the Court, will result in more severe sanctions in the future. While Defendant also contends Plaintiff did not produce all responsive documents as indicated in Plaintiff's responses, whether Plaintiff in fact produced all documents is not an issue to be determined for purposes of this motion. Defendant's request for sanctions is granted in the reduced amount of \$2,672.50 based on 5.5 hours of counsel's time at \$475/hour plus a \$60 filing fee. Plaintiff to provide supplemental responses and pay sanctions within 30 days of today's date.
8.	PHAN VS. ABBOTT 2022-01262349	MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT MOTION FOR A NEW TRIAL No tentative ruling.
9.	POTTER VS. DICKER 2026-01563148	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Plaintiff Jeffery Potter's motion for a Preliminary Injunction is DENIED. The burden is on the party "seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction." (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) "A trial court considers two interrelated factors when determining whether to issue a preliminary injunction: '(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. [Citations.]' [Citation.] These two factors 'are described as <i>interrelated</i> factors because the greater the plaintiff's showing on one, the less must be shown on the other to obtain an injunction. [Citation.] The goal of this test is to minimize the harm that an erroneous interim decision would cause. [Citations.]' [Citation.]" (<i>Mae M. v. Komrosky</i> (2025) 111 Cal.App.5th 198, 213.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (<i>Butt v. State of California</i> (1992) 4 Cal.4th 668, 678 (<i>Butt</i>)). "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim." (<i>Ibid.</i>) Plaintiff seeks a preliminary injunction (1) restraining Defendants Gerald Vance Dicker, GVD Commercial Properties, Inc. ("GVDCP"), Monte Mac No. 1 ("MM1"), Monte Mac No. 2

(“MM2”), and all persons acting in concert with them, from using Plaintiff’s own withheld or reduced distributive share, or partnership funds, to prosecute dissociation proceedings against Plaintiff; and (2) compelling Defendants to complete production of the tax workpapers, supporting schedules, trial balances, and other records demanded on April 13, 2026, and to facilitate the independent audit required under Article V(D) of the Limited Partnership Agreement and Corporations Code section 15903.04; pending trial of this action.

Likelihood of Prevailing on the Merits:

Plaintiff contends he is likely to prevail on his claims for breach of fiduciary duty, breach of the Limited Partnership Agreements and financial elder abuse which rest on the unauthorized use of Plaintiff’s distributive share and of partnership funds to pursue dissociation proceedings against him, and on the obstruction of contractual audit and inspection rights.

MM1’s Funding of its Disassociation Action:

Plaintiff seeks to restrain Defendants from using Plaintiff’s own withheld or reduced distributive share, or partnership funds to prosecute dissociation proceedings against Plaintiff.

Plaintiff contends the General Partner is deliberately diverting \$10,000 per month from partners’ distributions to pay for the dissolution proceedings against Plaintiff and that directing a partner’s own capital toward an effort to remove him and applying partnership assets to an offensive action against a partner rather than a defense of claims he brought, cannot be reconciled with the duty of loyalty codified at section 15904.08, subdivision (b).

Here, Article VII.A of MM1’s Limited Partnership Agreement (“LP Agreement”) grants the General Partner “full, exclusive and complete discretion in the management and control of the business of the partnership” and provides that the General Partner “shall make all decisions affecting the business of the partnership.” (Verified Complaint, Ex. 1, p. 11-12.) Further, California Corporations Code section 15904.06 provides that “[a]ny matter relating to the activities of the limited partnership may be exclusively decided by the general partner.” (Cal. Corp. Code § 15904.06.) Therefore, under the LP Agreement and section 15904.06, the general partner has the authority to manage partnership affairs, including the prosecution and defense of litigation on behalf of the partnership.

Defendants contend Plaintiff’s argument that his own capital cannot be used in the dissolution action misconstrues the structure of the limited partnership and MM1. Article VI.E of the LP Agreement provides that only “partnership cash in excess of an amount necessary to provide a reasonable reserve for the operation of the partnership

shall be distributed.” (Verified Complaint, Ex. 1, p. 11.) GVDCP, as the General Partner, sets aside cash flow toward a reserve account to ensure MM1 has adequate funds to pay for any operating costs, including unanticipated expenses. (Case Decl. ¶ 26; Suppl. Case Decl. ¶ 8b; LP Agreement, § VI.E, Verified Complaint, Ex. 1 at p. 11.) Remaining cash is distributed to the limited partners on a monthly and/or annual basis. (Case Decl. ¶ 26; Suppl. Case Decl. ¶ 8c; LP Agreement, § VI.E, Verified Complaint, Ex. 1 at p. 11 (31 of PDF).) The monies distributed to MM1’s limited partners become cash flow to MM1’s limited partners. (Case Decl. ¶ 26; Suppl. Case Decl. ¶ 8d; LP Agreement, § VI.E, Verified Complaint, Ex. 1 at p. 11 (31 of PDF).) The monies which are not distributed to MM1’s limited partners are necessary for MM1’s operations and belong to MM1, not any individual partner until they are distributed. (Case Decl. ¶ 26; Suppl. Case Decl. ¶¶ 8a-8c, 8e; LP Agreement, § VI.E, Verified Complaint, Ex. 1 at p. 11 (31 of PDF).) MM1 has deemed it necessary to reserve additional money for its operations due to Plaintiff’s audit demands, the costs associated with bringing legal action to disassociate Plaintiff, and to defend itself in this litigation. (Case Decl. ¶ 26, Ex. 5; Suppl. Case Decl. ¶ 8e.) Therefore, it has increased the number of dollars allocated toward its reserves each month, which incidentally results in reduced distributions to all of Plaintiff’s partners, including GVDCP. (Case Decl. ¶ 26, Ex. 5, Suppl. Case Decl. ¶ 8e.)

Therefore, Defendants have shown that the \$10,000 monthly reserve is an authorized partnership expense that applies pro rata to all partners, not just Plaintiff. Further, Plaintiff cites no statute or case law in support of his argument that a general partner of a limited partnership breaches the duty of loyalty when it causes monies belonging to the limited partnership to be used to pay lawyers the limited partnership has retained to bring a statutorily permitted disassociation action against a limited partner.

Accordingly, Plaintiff has failed to show a likelihood that he will prevail on his claim that using Plaintiff’s own withheld or reduced distributive share, or partnership funds to prosecute disassociation proceedings against Plaintiff is improper and subject to restraint.

Contractual Audit and Inspection Rights:

Plaintiff seeks to compel Defendants to produce the tax workpapers, supporting schedules, trial balances, and other records demanded on April 13, 2026, and to facilitate the independent audit required under Article V(D) of the Limited Partnership Agreement and Corporations Code section 15903.04; pending trial of this action.

Article V(D) of the LP Agreement provides limited partners with the right to an independent audit. Specifically, the LP Agreement provides, “Upon written request of any partner, the books of account

of the partnership shall be audited at the expenses of the partnership after the close of any annual accounting period to which such request relates, and financial statements of the business of the partnership for such accounting period shall be prepared and delivered to each of the partners.” (Verified Complaint, Ex. 1, LP Agreement, p. 9 [emphasis added].)

As to MM1, Plaintiff acknowledges that on June 20, 2026, Wipfli LLP issued its Independent Auditor’s Report and accompanying financial statements for MM1 for the year ended December 31, 2025. (Suppl. Kinley Decl. ¶ 2a.) However, Plaintiff contends the report is a standard financial statement audit and does not include the tax workpapers, supporting schedules, trial balances, or other underlying records that Plaintiff demanded in writing on April 13, 2026. Although Article V(D) of the LP Agreement only provides for an independent audit and production of financial statements, Plaintiff argues he is entitled to the “tax workpapers, supporting schedules, trial balances, and other records” under Article VIII of the LP Agreement and Corporations Code section 15903.04. Article VIII provides, “The books and records of the partnership shall be available for inspection by any party to the Agreement or its agent, at any reasonable time.” (Verified Complaint, Ex. 1, LP Agreement, p. 15.) Defendants have shown MM1’s former counsel offered Plaintiff and his counsel an opportunity to inspect MM1’s books and records at their offices during the first week of March 2026 but Plaintiff ignored the offer. (Case Decl. ¶ 23, Ex. 4.)

As to MM2, Defendants have shown as of May 31, 2026, MM2 has finalized its 2025 partnership books and tax returns and issued K-1s to all partners accordingly. (Supp. Case Decl., ¶ 6.) MM2 has engaged Wipfli, to render an audit of MM2’s financials and books and records, as Plaintiff requested and Wipfli is in the process of performing the MM2 audit. (Suppl. Case Decl. ¶ 6.)

Therefore, Plaintiff has failed to show a likelihood of prevailing as to his claim of obstruction of contractual audit and inspection rights.

Plaintiff has failed to show that there is a likelihood that he will prevail on his claims therefore the Motion is DENIED. (*Butt, supra*, 4 Cal.4th at p. 678 [“A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.”].)

Moving party to give notice.

10.	YEAGER VS. CITY OF DANA POINT 2025-01526078	DEMURRER TO FIRST AMENDED COMPLAINT Defendant County of Orange’s Demurrer to First Amended Complaint (FAC) is SUSTAINED with leave to amend. Defendant demurs to Plaintiff’s causes of action for (1) negligence of public employees and (2) dangerous condition of public property, which arise from a trip and fall incident on 1/12/25 on a public pedestrian/bike path adjacent to State Route 1 in Dana Point. (FAC, ¶¶ 1-4.) Plaintiff has not filed an opposition to the demurrer as of 9/8/26. The County demurs on the grounds of trail immunity under Government Code section 831.4, which provides, “A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of: (a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways. (b) Any trail used for the above purposes. (c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.” Here, Plaintiff alleges the incident occurred on the “public sidewalk and asphalt bicycle trail adjacent to Pacific Coast Highway...” (FAC, ¶ 2.) “The SUBJECT INCIDENT occurred on the asphalt bicycle trail portion of the SUBJECT PREMISES—i.e., within the area of the 10-foot wide bicycle trail easement retained by Defendant COUNTY OF ORANGE—and not on the PCC sidewalk that was relinquished to the City of Dana Point. (¶ 9.) Exhibit A to the FAC reflects that the trail is an asphalt bicycle trail maintained by the County. The County asserts that the subject path falls within the definition of a “trail” under section 831.4(b), which is used for purposes including those set out under section 831.4(a). Plaintiff has not opposed the demurrer. The County has shown the subject bicycle
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		path falls under section 831.4. Therefore, the demurrer is sustained with leave to amend.
11.	GOVEA VS. CITY OF FULLERTON 2023-01360733	DEMURRER TO SECOND AMENDED CROSS-COMPLAINT Cross-defendant United Specialty Insurance Company's (USIC) demurrer to Defendant/cross-complainant City of Fullerton's (City) Second Amended Cross-Complaint is SUSTAINED without leave to amend. USIC demurs to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action on the following grounds: (1) Plaintiff's alleged injury occurred outside the policy period and (2) the City has no standing to pursue a claim against USIC. <u>The Parties' Non-Compliance with California Rules of Court, Rule 3.1113, Subdivision (d)</u> "Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages" and "no reply or closing memorandum may exceed 10 pages" not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. (Cal. Rules of Court, rule 3.1113, subd. (d).) The City's opposition is 19 pages, and Plaintiff's reply is 11 pages in violation of rule 3.1113. The Court need not, and indeed does not, consider the portions of the City's opposition and Plaintiff's reply in excess of the page limit. The Court would note the City's opposition to the prior demurrer to the first amended cross-complaint was also over the limit at 17 pages, the Court considered the opposition. In any event, 19 pages is significantly over the page limit. <u>City's Request for Judicial Notice</u> The City requests judicial notice of its Second Amended Cross-Complaint and exhibits filed with this Court on 2/17/26. A court may take judicial notice of its own records. (Evid. Code, § 452, subd. (d).) While "[a] court may take judicial notice of the <i>existence</i> of each document a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS the City’s request for judicial notice.

The City’s Allegations

On 5/1/15, the City entered into a written agreement with DVBE ASAP, Inc. (DVBE) for DVBE to provide hardscape and landscape services for the City during the fiscal year 2014 to 2015, including reconstruction of the sidewalk, curb and gutter, root pruning, clearing and grubbing of tree roots for concrete restoration. (SACC ¶¶ 3, 26, 27; Ex. A.) The agreement with DVBE contained a provision agreeing to indemnify the City for any injuries to the public in connection with performing the work. (FACC ¶ 44, Ex. A.)

USIC provided an insurance policy to DVBE (policy number SII0503B08670) covering DVBE’s work at the subject location (the Policy). (FACC ¶ 38; Ex. H.) The Policy included the City as an “additional insured.” (FACC ¶ 38, Ex. D.)

Plaintiff alleges she was injured in a trip and fall on 11/19/22 on a sidewalk located in Fullerton. (FACC ¶ 25.)

Whether the Alleged Injury Occurred Outside the Policy Period

USIC demurs on the grounds that Plaintiff’s injury occurred outside the policy period. Specifically, USIC contends the Policy covers only bodily injury that occurs during the policy period, i.e. 1/16/15-1/16/16, and therefore does not cover injuries from Plaintiff’s trip and fall on 11/19/22.

In doing so, USIC relies on Section I.1.b of the Policy: which provides: “This insurance applies to ‘bodily injury’ and ‘property damage’ only if: . . . The ‘bodily injury’ or ‘property damage’ occurs during the policy period.” (SACC, Ex. H at p. 1 of 16.) The Policy’s Common Policy Declarations sets forth the policy period as 1/16/15 through 1/16/16. (SACC, Ex. H at p. 1 of 4 of Common Policy Declarations.)

USIC also relies on amended Section I.1.b from the Amendment to Other Insurance Condition which provides: “This insurance applies to ‘bodily injury’ and ‘property damage’ only if: . . . The ‘bodily injury’ or ‘property damage’ first occurs or begins during the ‘policy period.’ ‘Bodily injury’ or ‘property damage’ first occurs or begins on the date when the ‘bodily injury’ or ‘property damage’ appears and is identified by the insured or another person. (SACC, Ex. H at p. 1 of 14 of Amendment.)

The City contends the Policy is an “occurrence based” policy, which provides coverage for damages that occur during the policy period, even if the claim is made after the policy expired, rather than a “claims based” policy, which provides coverage only if the claim is

made during the policy period. (Opp. at 11:12-16.) Accordingly, the City contends the Policy covers Plaintiff's injuries as "damage done to the sidewalk occurred at the time construction took place in 2015 and was within the policy's effective dates." (Opp. at 14:28-15:2.)

In doing so, the City again relies on *Century Indemnity Co. v. Hearrean* (2002) 98 Cal.App.4th 734 and *Guastello v. AIG Specialty Ins. Co.* (2021) 61 Cal.App.5th 97, which the Court previously found were inapposite. *Century Indemnity Co.* involved a claim for property damage to a hotel which the court found was continuous and progressive, stemming from defective design and construction that occurred during the policy period. (98 Cal.App.4th at p. 743.) Similarly, *Guastello* involved a claim for property damage caused by a collapse of a retaining wall where evidence suggested it collapsed due to improper work performed during the policy period. (61 Cal.App.5th at p. 106.)

Plaintiff does not allege property damage to, for example, the sidewalk resulting from negligent work performed during the policy period, but rather, personal injury resulting from a trip and fall. The Policy provides coverage if the bodily injury first "appears and is identified" during the policy period, not when any circumstances that may have contributed to the cause of the bodily injury first appear.

Plaintiff alleges that similar to the facts in *Century Indemnity Co.*, *supra*, 98 Cal.App.4th at p. 743, the occurrence-based Policy not only provides coverage for continuous damage to the sidewalk, but also to Plaintiff's alleged injuries that were not "manifested until after the expiration of the policy period." *Century Indemnity Co.* stated, however, "the trigger of coverage, the continuous and progressive injury to the hotel property caused by defective design and construction, occurred during the policy period and activated Century's defense and indemnity obligations." (98 Cal.App.4th at p. 743.) Thus, the injury at issue was property damage related to the allegedly defective construction, not bodily injury that was alleged to have somehow stemmed from the defective construction.

"When the complaint fails to allege that the terms of the contract have any special meaning, the court can construe the language of the document on its face to determine whether as a matter of law the contract is reasonably subject to a construction sufficient to sustain a cause of action in response to a demurrer. However, when the plaintiff alleges a meaning to the document that is reasonable in light of its terms, the court cannot grant a demurrer but must permit the admission of extrinsic evidence regarding the meaning of the document as intended by the parties." (*Hervey v. Mercury Casualty Co.* (2010) 185 Cal.App.4th 954, 962 [citations omitted].)

The City’s second amended cross-complaint does not allege any meaning to the provision stating, “‘Bodily injury’ or ‘property damage’ first occurs or begins on the date when the ‘bodily injury’ or ‘property damage’ appears and is identified by the insured or another person.”

The City does not address this specific provision in its opposition, but points to additional language that provides:

c. “Bodily injury” or “property damage” which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim, includes any continuation, change or resumption of that “bodily injury” or “property damage” after the end of the policy period.

d. “Bodily injury” or “property damage” will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any “employee” authorized by you to give or receive notice of an “occurrence” or claim:

(1) Reports all, or any part, of the “bodily injury” or “property damage” to us or any other in-surer;

(2) Receives a written or verbal demand or claim for damages because of the “bodily injury” or “property damage”; or

(3) Becomes aware by any other means that “bodily injury” or “property damage” has occurred or has begun to occur.

(SACC, Ex. H at p. 1 of 16.)

While City emphasizes the phrase “after the end of the policy period” in subsection (c), it still refers to “Bodily injury” or “property damage” which occurs *during the policy period* but has continued, changed, or resumed after the end of the policy period.

Similarly, the City emphasizes the phrase, “Becomes aware by any other means that ‘bodily injury’ or ‘property damage’ has occurred or has begun to occur” in subsection (d). The City has not alleged, however, that it was aware of the bodily injury at some point during the policy period (nor could it as the incident occurred almost 7 years after the policy expired).

Thus, the Court considers the language of the provision on its face and finds it supports USIC’s contention that Plaintiff’s alleged injuries fall outside the Policy’s policy period as they appeared when the incident occurred on 11/29/22.

Accordingly, the Court SUSTAINS the demurrer to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action

for failure to state facts sufficient to constitute these causes of action based on the above.

First Cause of Action for Express Indemnity and Defense as to USIC

USIC contends the City lacks standing to bring its action against USIC as an insurer of DVBE.

“Generally an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured third party.” (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 200, citation omitted.) “An additional insured has standing to sue an insurer for breach of contract and breach of the implied covenant.” (*Ibid.*) “If [a party] is an additional insured, then it is a first party.” (*Ibid.*)

The City has sufficiently alleged the Policy included the City as an “additional insured” (SACC ¶¶ 35, 38, Ex. D) such that it may bring its second amended cross-complaint against USIC. Accordingly, the Court overrules USIC’s demurrer on this ground.

Third Cause of Action for Breach of Contract as to USIC

“To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 [citation omitted].)

USIC also contends the City’s third cause of action for breach of contract fails as to USIC because USIC is not a party to the contract. In support of this cause of action, Plaintiff alleges, “Pursuant to the DVBE/USIC (DVBE contract thereby USIC) Agreement attached hereto as EXHIBIT “A”, DVBE/USIC and ROES 1-10, and each of them, were obligated to perform certain work and services prior to the date of the subject incident, including pruning/grubbing the roots and creating a root barrier, then replace the sidewalk slab at the subject premises where the sidewalk damage of rising occurred as to the intended benefit of the public, including plaintiff and/or proximately causing injury to PLAINTIFF, for which the CITY is being sued. (SACC ¶ 77.)

Plaintiff further alleges, “DVBE/USIC and ROES 1-30, and each of them, breached said DVBE/USIC Agreement by failing to adequately prune and clear and grub the roots of the tree located adjacent to the subject premises and inadequately preparing a root barrier to prevent the root growth from re-damaging the sidewalk by causing the slab to rise and creating a differentiation between the two slabs of sidewalk and creating the condition alleged by plaintiff

		prior to reconstructing/replacing the sidewalk slab at the subject premises, as required under the DVBE Agreement. The negligent work of DVBE breached the agreement and thereby caused the ongoing damage to the sidewalk whereby it continued to lift, which is was specifically hired to prevent.” (SACC ¶ 78.) The Agreement itself states is between the “City of Fullerton” and “DVBE ASAP INC.” (Ex. A.) The City alleges multiple times in the SACC that the Agreement is between itself and DVBE: - “Agreement between CITY and DVBE” (SACC ¶ 3.) - “The CITY alleges that it entered into an Agreement with DVBE on or about May 1, 2015” (SACC ¶ 26.) - “Under the CITY’s agreement with DVBE, DVBE was responsible for” (SACC ¶ 27.) As the City has not alleged sufficient facts demonstrating USIC was also a party to the Agreement, the Court sustains USIC’s demurrer to the third cause of action on this ground.
12.	JOHNSON VS. LUK 2026-01545106	DEMURRER TO COMPLAINT DEMURRER TO COMPLAINT MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE - ANTI SLAPP MOTION TO STRIKE As to all 5 motions there are no tentative rulings. Counsel to appear.
13.	ALARID VS. CAMARILLO 2024-01377164	MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS SET ONE Plaintiff Dolores Alarid’s Motion to Compel Defendant Petra Camarillo’s Further Responses to Requests for Admission, Set One (RFAs) is DENIED. Plaintiff seeks further responses to 42 RFAs related to the subject collision. Defendant’s initial responses consist of objections with the statement, “Responding Party is unable to admit or deny this Request at this time.”

However, Defendant served further responses on 4/24/26 and 5/19/26 which include additional information. Defendant asserts the motion is moot as to the initial responses.

In reply, Plaintiff apparently concedes the further responses are sufficient. However, Plaintiff argues sanctions of \$3,385.00 are warranted because Defendant did not serve substantive responses until after the motion was filed.

Plaintiff's request for sanctions is denied. Plaintiff's counsel declares they sent a meet and confer letter to Defendant's counsel the day after receiving the initial responses, then filed the motion approximately ten days after receiving the initial responses. Plaintiff's counsel did not attempt to meet and confer in person, by phone, or videoconference as required under Code of Civil Procedure section 2016.040, amended effective 1/1/26. Therefore, sanctions are denied because Plaintiff has not demonstrated a diligent attempt to meet and confer before filing the motion.

MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION

Defendant Doordash's Motion for Summary Judgment is DENIED as to the first cause of action and GRANTED as to the second cause of action.

Plaintiff's objections (ROA 155) are overruled except for objection #2 to the truth of statements contained within the traffic collision report, which are hearsay. (Evid. Code § 1200 et seq.; see *People v. Dixon* (2026) 118 Cal.App.5th 116, 136.)

Defendant's objections (ROA 140) are overruled. Plaintiff's expert opinions have sufficient foundation.

Legal Standard:

Code of Civil Procedure section 437c(c) provides, "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.

Section 437c(o)-(p) states:

“(o) A cause of action has no merit if either of the following exists:
(1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.
(2) A defendant establishes an affirmative defense to that cause of action.

(p) For purposes of motions for summary judgment and summary adjudication:

[¶]

(2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

Summary of Facts:

This case arises from a collision at approximately 8:40 p.m. on 3/26/23 on Whittier Blvd. in La Habra. (Defendant’s Undisputed Material Fact [UMF] 1.) Defendant asserts that decedent Noah Rodriguez was driving while intoxicated and violating the 40 mile-per-hour speed limit while lane splitting on his motorcycle before he lost control and hit a vehicle. (UMFs 2-8.)

Plaintiff disputes whether and to what extent Rodriguez was at fault for the collision. (Plaintiff’s Responses to UMFs 2-8 and Plaintiff’s Additional Facts [PAFs] 1-9.) Plaintiff’s accident reconstruction expert Mr. Yates opines that Defendant Camarillo, who was driving her Honda Pilot while completing a delivery for Defendant Doordash, swerved to the left and bears at least partial fault. (Id.)

Plaintiff’s First Amended Complaint (FAC) alleges claims for wrongful death and vicarious liability.

Application:

Doordash asserts (1) Camarillo did not drive negligently, (2) Plaintiff cannot show Doordash failed to train/supervise Camarillo, and (3) Doordash is not vicariously liable for the acts of its independent contractors under Prop 22.

First Cause of Action – Wrongful Death:

This claim includes the allegation that Defendant was “negligent in [its] failure to train and supervise their drivers.” (FAC, ¶ 17.)

First, Plaintiff has presented sufficient evidence to create a triable issue as to whether Camarillo operated her vehicle negligently. Based on surveillance video of the incident, Plaintiff’s accident reconstruction expert opines that the physical evidence is consistent with Camarillo’s vehicle swerving left, causing contact with Rodriguez’s motorcycle. (Yates Decl., ¶¶ 6-23.) He opines, “DoorDash’s position, as I understand it, is that Mr. Rodriguez alone caused the collision by lane splitting, speeding, swerving, and/or losing control. From an accident reconstruction standpoint, that conclusion is not compelled by the physical evidence. Even if Mr. Rodriguez was lane splitting, and even if he was traveling faster than the surrounding traffic, the physical evidence still supports a conclusion that movement or encroachment by the Honda Pilot contributed to the collision.” (¶ 18.)

At this stage, Mr. Yates’s declaration is sufficient to demonstrate a factual dispute as to the issue of Ms. Camarillo’s negligence.

Next, Defendant contends that Plaintiff cannot support its negligence-based claims because Camarillo was an independent contractor who was not “supervised” by Defendant, and Defendant met its training obligation by providing a safety course. (UMF 13.)

Plaintiff does not identify any legal authority requiring additional training measures, or any prior incidents involving unsafe driving by Camarillo. However, Plaintiff points to Camarillo’s testimony that she was able to begin driving without training, videos, or instructions. (PAF 33.) Defendant does not resolve this issue in reply.

Therefore, there is a triable issue as to the first cause of action because there is a dispute as to whether Defendant provided any safety training to Camarillo. (FAC, ¶ 17.)

Second Cause of Action – Vicarious Liability:

Defendant contends Camarillo was considered an independent contractor under Proposition 22, enacted in 2020 as Business & Professions Code sections 7448-7467. Section 7451 states the following:

“Notwithstanding any other provision of law, including, but not limited to, the Labor Code, the Unemployment Insurance Code, and any orders, regulations, or opinions of the Department of Industrial Relations or any board, division, or commission within the

Department of Industrial Relations, an app-based driver is an independent contractor and not an employee or agent with respect to the app-based driver's relationship with a network company if the following conditions are met:

(a) The network company does not unilaterally prescribe specific dates, times of day, or a minimum number of hours during which the app-based driver must be logged into the network company's online-enabled application or platform.

(b) The network company does not require the app-based driver to accept any specific rideshare service or delivery service request as a condition of maintaining access to the network company's online-enabled application or platform.

(c) The network company does not restrict the app-based driver from performing rideshare services or delivery services through other network companies except during engaged time.

(d) The network company does not restrict the app-based driver from working in any other lawful occupation or business.”

“Under section 7451, a driver for an app-based transportation or delivery company, such as... DoorDash, Inc., is an independent contractor and not an employee of the company as long as several conditions are met.” (*Castellanos v. State of California* (2024) 16 Cal.5th 588, 595.)

“[T]he hirer of an independent contractor is usually not held liable for injuries to the contractor or its employee.” (*Gravelin v. Satterfield* (2011) 200 Cal.App.4th 1209, 1214.)

Here, Doordash asserts all four conditions were met regarding Camarillo’s work at the time of the collision. (UMFs 10-20.) Therefore, Defendant argues it cannot be vicariously liable for Camarillo’s alleged negligence.

Plaintiff argues Prop 22 does not cover third-party tort liability. Plaintiff argues *Castellanos, supra*, only held that Prop 22 is valid as to the workers’ compensation scheme but did not address issues of vicarious tort liability. Plaintiff further asserts the language of section 7451 limits its scope to “the app-based driver’s relationship with a network company” and does not extend to the relationship between the company and third parties such as Plaintiff.

In reply, Defendant concedes there is no case law deciding the issue, but asserts that most trial courts have held section 7451 governs third-party tort claims. (Reply, p. 6.) Moreover, Defendant argues that by requiring delivery companies to maintain liability insurance of \$1 million to compensate third parties, Prop 22 reflects an intent to encompass tort liability and ensure that third parties are compensated for injuries involving app drivers without application of vicarious liability. (Bus. & Prof. Code § 7455(f)(1).)

	Defendant further argues the history of Prop 22 reflects an intent to exempt app-based drivers from the application of AB 5, which used the “ABC test” to determine independent contractor status. (Lab. Code § 2775.) Moreover, Defendant contends the phrase “notwithstanding any other provision of law” in section 7451 reflects that it was intended to apply instead of the other independent contractor tests for vicarious liability. In the absence of binding case law, the Court finds Defendant’s statutory analysis more persuasive than Plaintiff’s analysis. The broad phrase “notwithstanding any other provision of law,” combined with the \$1 million third party liability insurance requirement demonstrate that Prop 22 is intended to encompass the scope of third-party tort liability. Plaintiff argues there is a dispute regarding whether Camarillo met the four-part test of section 7451 because Defendant fails to establish Camarillo’s agreement to its independent contractor agreement and maintained some control over whether a delivery driver could accept deliveries at any time. However, Defendant has adequately proven Camarillo’s electronic acceptance of its independent contractor terms, and that fact that certain drivers could earn the right to work at any time does not demonstrate that Doordash “unilaterally prescribe[d] specific dates, times of day, or a minimum number of hours....” Therefore, the motion is granted as to the second cause of action for vicarious liability.
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